OPERATING_AGREEMENT.md

OPERATING AGREEMENT

APEX LOGICS LLC

THIS OPERATING AGREEMENT ("Agreement") is made and entered into on March 16, 2026 ("Effective Date"), by and between **ERICK M. RAMDEHOLL**, an individual ("Member"), and **APEX LOGICS LLC**, a Florida limited liability company ("LLC").

Company Registration:

- FL Doc#: L23000460971
- DBA Reg#: G26000036763 (d/b/a TradVue)
- EIN: 93-3771291

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1. FORMATION AND ORGANIZATION

1.1 Formation

The Member hereby adopts and ratifies the formation of the LLC as a limited liability company under the Florida Limited Liability Company Act, Chapter 605, Florida Statutes ("Act"), with the name **APEX LOGICS LLC** ("Company").

1.2 Principal Place of Business

The principal place of business of the Company shall be located at:

Address: 1935 Commerce Lane, Suite 9 City, State, ZIP: Jupiter, FL 33458 The Company may maintain such other offices or places of business as the Member shall determine.

1.3 Effective Date

This Agreement shall be effective as of the date first written above and shall remain in effect until dissolved or terminated as provided herein.

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2. PURPOSE AND BUSINESS

2.1 Business Purpose

The Company is formed for the purpose of:

(a) Developing, licensing, and distributing software, including but not limited to trading analytics platforms and SaaS applications;

(b) Providing software-as-a-service ("SaaS") platform services related to trading analytics and financial market analysis;

(c) Providing consulting, development, and integration services related to software solutions;

(d) Operating under the trade name "TradVue" (DBA Reg# G26000036763) for customer-facing products and services;

(e) Developing, deploying, and operating artificial intelligence and machine learning systems, including AI-powered analytical tools, in connection with the Company's software products and SaaS platforms;

(f) Processing, storing, and analyzing user data, including financial and trading data, in compliance with applicable privacy laws and regulations;

(g) Engaging in any other lawful business purpose consistent with software development and SaaS operations.

2.2 Business Operations

The Company shall be authorized to engage in all business activities necessary or incidental to accomplishing the business purpose set forth in Section 2.1.

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3. MEMBER AND MEMBERSHIP

3.1 Member

The sole member of the Company is:

Membership Information	Details
Name	Erick M. Ramdeholl
Title	AP, President
Address	1935 Commerce Lane, Suite 9, Jupiter, FL 33458
Email	erick@tradvue.com
Membership Interest	100% of all LLC membership interests
Date of Admission	Date of LLC formation (FL Doc# L23000460971)

3.2 Capital Contribution

The Member shall make a capital contribution to the Company in the amount of:

Amount: $ _____

This contribution shall be made by _____ (date) and shall constitute the sole capital contribution required from the Member.

3.3 Membership Certificate

The Company may issue a membership certificate to the Member evidencing membership interest. Such certificate shall be non-transferable except as permitted under Section 8 (Transfer of Membership Interests).

3.4 No Additional Capital Calls

Except as provided herein, the Member shall have no obligation to make additional capital contributions to the Company.

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4. MANAGEMENT AND OPERATION

4.1 Member-Managed Company

The Company shall be managed by the Member (member-managed). The Member shall have the power to manage the business, operations, and affairs of the Company, including but not limited to the power to make decisions regarding:

(a) Business operations and strategy (b) Capital expenditures and investments (c) Hiring, compensation, and termination of employees and contractors (d) Banking relationships and credit arrangements (e) Lease agreements and real property transactions (f) Intellectual property development and licensing (g) Entry into contracts and agreements

4.2 Authority of Member

The Member shall have full power and authority to execute contracts, agreements, and documents on behalf of the Company and to bind the Company to such contracts and agreements.

4.3 Meetings

There shall be no formal meetings required under this Agreement. The Member may act at any time without notice or formality. The Member may document any decisions in writing in the form of a meeting memorandum or written resolution.

4.4 Banking Authority

The Member is authorized to:

(a) Open, maintain, and close bank accounts in the Company's name (b) Deposit Company funds into designated accounts (c) Withdraw Company funds and make disbursements (d) Execute banking documents, checks, and electronic funds transfers (e) Establish lines of credit and borrowing arrangements

4.5 Books and Records

The Member shall maintain complete and accurate books of account and records of the Company, including:

(a) Financial statements and accounting records (b) Member capital accounts (c) Tax returns and documentation (d) Records of distributions (e) Contracts and agreements (f) Intellectual property documentation

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5. CAPITAL ACCOUNTS AND DISTRIBUTIONS

5.1 Capital Account

A capital account shall be established and maintained for the Member showing:

(a) The Member's original capital contributions (b) Increases or decreases in the Member's capital account (c) Allocations of profits and losses (d) Distributions to the Member

5.2 Profit and Loss Allocation

All net profits, net losses, and all items of income, gain, loss, deduction, and credit of the Company for each fiscal year shall be allocated 100% to the Member.

5.3 Distributions

The Member shall be entitled to distributions of Company profits as determined by the Member in its sole discretion. Distributions may be made at any time and in such amounts as the Member deems appropriate.

5.4 Tax Distributions

To the extent practicable, the Company shall make distributions to the Member in amounts sufficient to permit the Member to pay income taxes with respect to the Member's share of Company income. The timing and amount of such distributions shall be at the Member's sole discretion.

5.5 No Distributions on Withdrawal

Upon the Member's withdrawal or the dissolution of the Company, distributions shall be made only after all liabilities and obligations of the Company have been satisfied.

5.6 Distributions in Kind

Distributions may be made in cash, Company property, or a combination thereof, as determined by the Member.

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6. INTELLECTUAL PROPERTY

6.1 Ownership

All intellectual property, including but not limited to patents, copyrights, trademarks, trade secrets, software, algorithms, methodologies, processes, and inventions, created or developed:

(a) By or for the Company; (b) By the Member in the course of performing duties for the Company; (c) Using Company resources, facilities, or information; (d) Related to the Company's business or purpose;

shall be the sole and exclusive property of the Company.

6.2 Assignment

The Member hereby assigns and transfers to the Company all right, title, and interest in any intellectual property created or developed as described in Section 6.1, regardless of whether such creation or development occurs during business hours or using Company resources.

6.3 Third-Party IP

Any intellectual property developed or contributed by third-party employees, contractors, or consultants shall be owned by the Company to the extent permitted by applicable law. The Company shall obtain written assignments and work-for-hire agreements from all employees and contractors confirming that all IP developed belongs to the Company.

6.4 Confidentiality

The Member acknowledges that certain Company intellectual property and business information is confidential and proprietary. The Member shall maintain the confidentiality of such information during and after the Member's association with the Company.

6A. TRADE NAMES AND BRANDS

6A.1 Registered Trade Names

The Company operates under the following registered trade name(s):

- **TradVue** (DBA Reg# G26000036763, Palm Beach County, Florida)

All intellectual property, goodwill, and brand equity associated with the TradVue trade name and any future trade names shall be the sole and exclusive property of the Company.

6A.2 Additional Trade Names

The Member may, in the Member's sole discretion, register additional trade names or "doing business as" designations for the Company. All such trade names and associated intellectual property shall be owned by the Company.

6B. TECHNOLOGY AND AI OPERATIONS

6B.1 AI Systems

The Company develops and operates artificial intelligence systems as part of its software products, including but not limited to AI-powered analytical tools ("AI Coach") that process user data to generate analytical insights. The Member acknowledges that:

(a) AI systems may utilize third-party AI service providers (including but not limited to OpenAI) for processing; (b) The Company is responsible for ensuring compliance with applicable data privacy and consumer protection laws in connection with AI operations; (c) AI outputs generated by the Company's products do not constitute investment advice, financial recommendations, or professional guidance of any kind.

6B.2 Data Processing and Privacy

The Company processes, stores, and transmits personal data and financial/trading data of its users. The Member shall ensure that:

(a) The Company maintains appropriate technical and organizational security measures to protect user data; (b) The Company complies with applicable data protection laws, including but not limited to the Florida Information Protection Act (Fla. Stat. § 501.171), the California Consumer Privacy Act (CCPA), and the General Data Protection Regulation (GDPR) where applicable; (c) The Company maintains and publishes a Privacy Policy, Terms of Service, and other legally required disclosures; (d) Data breach response procedures are documented and the Member has sole authority to make decisions regarding breach notification and response.

6B.3 Data Breach Response Authority

In the event of a data breach or suspected data breach involving Company systems or user data, the Member shall have sole authority and responsibility to:

(a) Determine the scope and severity of the breach; (b) Engage legal counsel, forensic investigators, and other advisors as necessary; (c) Make all decisions regarding breach notification to affected individuals, regulatory authorities, and law enforcement; (d) Authorize any public statements or disclosures regarding the breach; (e) Approve expenditures related to breach response and remediation.

6C. INSURANCE

6C.1 Required Insurance

The Company shall maintain, or make commercially reasonable efforts to obtain, the following types of insurance coverage appropriate for its business operations:

(a) **Technology Errors & Omissions (Tech E&O) and Cyber Liability Insurance** — covering claims arising from software errors, data breaches, and technology failures; (b) **General Commercial Liability Insurance** — when required by lease agreements, contracts, or business operations; (c) **Directors & Officers (D&O) Insurance** — prior to accepting any outside investment or adding additional members.

6C.2 Discretion

The specific coverage amounts, carriers, and policy terms shall be determined by the Member in the Member's sole discretion, taking into account the Company's operations, risk profile, and financial resources.

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7. DISSOLUTION AND LIQUIDATION

7.1 Dissolution Events

The Company shall be dissolved upon the earliest of:

(a) The occurrence of an event of dissolution specified in the Act; (b) The passage of a definite term of years (if any such term has been specified in the Articles of Organization); (c) The death or incapacity of the sole Member, unless the Company is continued under the Act; (d) Written dissolution decision by the Member; (e) Judicial dissolution under the Act.

7.2 Wind-Up and Liquidation

Upon dissolution of the Company, the Member (or a designated liquidator) shall wind up the affairs of the Company and liquidate its assets. The Company shall:

(a) Cease new business operations (b) Collect all Company assets (c) Pay all debts and liabilities (d) Return all property of third parties (e) Distribute remaining assets to the Member according to the Member's capital account

7.3 Succession Upon Death

If the sole Member dies, the Company shall not be automatically dissolved. The Member's estate or designated successor may continue the Company's operations, assuming all rights and obligations under this Agreement. The successor shall become the new Member.

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8. TRANSFER OF MEMBERSHIP INTERESTS

8.1 Restrictions on Transfer

The Member's membership interest in the Company may not be transferred, sold, pledged, hypothecated, or encumbered without the prior written approval of the remaining members (if any). Since there is only one member, any transfer must be documented and consented to by that member.

8.2 Right of First Refusal

If the Member desires to transfer any portion of the Member's interest, the remaining member shall have a right of first refusal to purchase such interest on the same terms offered to any prospective purchaser.

8.3 Assignment by Will

The Member may designate a successor to receive the Member's membership interest upon the Member's death by will or other testamentary instrument.

8.4 No Admission of Assignee

Any assignee of a membership interest shall not become a member and shall not have any rights as a member unless:

(a) Expressly approved by the remaining members; and (b) The assignee executes a counterpart of this Agreement or a written acknowledgment of membership.

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9. MEMBER RIGHTS AND RESPONSIBILITIES

9.1 Member Rights

The Member shall have the following rights:

(a) To participate in the management and operation of the Company (b) To receive distributions of profits as determined by the Member (c) To inspect books and records of the Company (d) To obtain financial information regarding the Company (e) To assign the Member's interest as permitted under Section 8

9.2 Member Duties

The Member shall:

(a) Act in good faith and in a manner the Member reasonably believes to be in the best interests of the Company (b) Maintain confidentiality of Company proprietary information (c) Comply with all applicable laws and regulations (d) Keep accurate records and financial books (e) Pay all personal income taxes with respect to the Member's share of Company income

9.3 Indemnification

The Company shall indemnify and hold harmless the Member from any third-party claims arising from:

(a) The Member's good-faith management decisions made on behalf of the Company (b) Actions taken in accordance with this Agreement (c) Claims arising from the Company's business operations (except those arising from the Member's gross negligence or willful misconduct)

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10. TAXES

10.1 Tax Treatment

The Company is intended to be treated as a disregarded entity for federal income tax purposes. All Company income shall be reported and taxed at the Member's individual tax return.

10.2 Tax Returns

The Company shall file all required federal, state, and local tax returns. The Member shall provide necessary documentation to support the Member's individual tax filing obligations.

10.3 Tax Elections

The Member shall make any required or permitted tax elections on behalf of the Company. The Company shall comply with all applicable tax laws and regulations.

10.4 Estimated Tax Payments

The Member shall be responsible for making estimated income tax payments with respect to the Member's share of Company income.

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11. AMENDMENT AND MODIFICATION

11.1 Amendment

This Agreement may be amended, modified, or restated by written instrument signed by the Member.

11.2 Effect of Amendment

Any amendment or modification shall become effective upon execution by the Member and shall be binding on all parties.

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12. GOVERNING LAW

12.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Florida, including Chapter 605, Florida Statutes (Florida Limited Liability Company Act), without regard to conflicts of law principles.

12.2 Jurisdiction

Each party consents to the exclusive jurisdiction of the state and federal courts located in Palm Beach County, Florida for the resolution of any disputes arising under or relating to this Agreement.

12.3 Venue

Each party waives any objection to venue in Palm Beach County, Florida and any claim of inconvenient forum.

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13. GENERAL PROVISIONS

13.1 Entire Agreement

This Agreement, including any exhibits or attachments hereto, constitutes the entire agreement between the parties with respect to the Company and supersedes all prior negotiations, understandings, and agreements, whether written or oral.

13.2 Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect, and the invalid provision shall be reformed to the minimum extent necessary to make it valid and enforceable.

13.3 Waiver

No waiver of any provision or breach of this Agreement shall be effective unless in writing and signed by the Member against whom such waiver is sought.

13.4 Counterparts

This Agreement may be executed in multiple counterparts, each of which shall be deemed an original and all of which together shall constitute one agreement. Execution and delivery by electronic means shall have the same effect as manual execution.

13.5 Notices

All notices required under this Agreement shall be in writing and shall be delivered personally, by overnight courier, by email with read receipt, or by certified mail to the address of the Member set forth in Section 3.1.

13.6 Binding Effect

This Agreement shall be binding upon and inure to the benefit of the Member and the Company and their respective successors and assigns.

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14. ACKNOWLEDGMENT

The Member acknowledges that:

(a) The Member has read and understands this Agreement (b) The Member has had the opportunity to consult with legal and tax advisors (c) The Member agrees to be bound by all terms and conditions herein (d) The Member authorizes the execution of this Agreement on behalf of the Company

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IN WITNESS WHEREOF, the Member has executed this Operating Agreement as of the date first written above.

MEMBER:

By: _____ Name: Erick M. Ramdeholl Date: _____

COMPANY:

APEX LOGICS LLC d/b/a TradVue

By: _____ Name: Erick M. Ramdeholl Title: President / Member-Manager Date: _____

DRAFT — Prepared for attorney review. This document should be reviewed by qualified legal counsel licensed in Florida before execution.